

Employment First Resource List

Revised December 2024

Over the past 20+ years, the concept of “Employment First” has emerged in the disability field. This approach emphasizes that employment in integrated settings within the community should be the priority outcome for people with disabilities, including those with intellectual and developmental disabilities (IDD). As this approach has gained traction, close to 40 states have enacted formal Employment First policies. Additionally, many states have enacted related legislation and policy issuances, reports, and documents, as well as state-specific online resources and websites.

Since first being issued in June 2010, this *Employment First Resource List* has been regularly updated, to assist policymakers, advocates, and researchers in implementing Employment First approaches in states. Use of the term “Employment First” has not necessarily been a requirement for inclusion. Instead, the focus has been on policies and resources that reinforce the principles of Employment First, whether that specific language is used or not.

To be included in the list as a policy, an item must be an official directive from a state government agency stating that employment in the community (in the general workforce) is the first and primary option for individuals with disabilities. In some cases, these policies are highly detailed and substantive, and may be specific legislation or directives. In other cases, the policy consists of language simply endorsing integrated employment as the preferred option for publicly funded services, with limited specifics. In a few cases, language has been identified within an overall policy directive that aligns with generally accepted Employment First commitments.

A Summary of the Status of Employment First

Thirty-nine states have an official Employment First policy (based on legislation, policy directive, etc.). Twenty-four states have passed legislation stating that integrated employment is preferred over other service options: **Alaska, California, Colorado, Delaware, Florida, Georgia, Hawaii, Illinois, Indiana, Kansas, Kentucky, Maine, Minnesota, Mississippi, Missouri, Ohio, Oklahoma, Oregon, Pennsylvania, Texas, Utah, Washington, Wisconsin, and Wyoming.** The other 17 (**Arizona, Arkansas, Connecticut, District of Columbia, Louisiana, Maryland, Massachusetts, Michigan, Minnesota, Missouri, New Jersey, New Mexico, North Carolina, Rhode Island, South Carolina, Tennessee, and Virginia**) have a policy directive, executive order, or similar official policy statement, but not legislation. Some states have both legislation and a non-legislative policy directive (e.g., **Kentucky, Maine, Mississippi, Missouri, Oklahoma, Oregon, Pennsylvania, and Washington**).

Twenty-seven state policies are cross-disability: **Alaska, Arizona, Arkansas, Colorado, Delaware,**

District of Columbia, Florida, Georgia, Hawaii, Illinois, Indiana, Kansas, Kentucky, Maine, Michigan, Minnesota, Mississippi, Missouri, New Jersey, North Carolina, Oklahoma, Pennsylvania, Texas, Utah, Virginia, Wisconsin, and Wyoming. The remainder of states' policies are focused exclusively on individuals with IDD: **California, Connecticut, Louisiana, Maryland, Massachusetts, New Mexico, Ohio, Oregon, Rhode Island, South Carolina, Tennessee, and Washington.** (Delaware, Missouri, and Oklahoma's legislation are cross-disability, while their policy directives, which preceded the legislation, are specific to individuals with IDD.)

There are 12 states that do not have Employment First policies (**Alabama, Idaho, Iowa, Montana, Nebraska, Nevada, New Hampshire, New York, North Dakota, South Dakota, Vermont, and West Virginia**). All of these states have some level of activity ranging from initial expressions of interest in Employment First with limited follow-up, legislation introduced but not yet passed, formation of task forces, and robust systems change efforts. A summary of activities in these states includes:

Committees and taskforces: **West Virginia** passed legislation in 2021 that established a taskforce to create an Employment First policy, and a policy is expected in the near future. **New York** has a 2014 Executive Order with similar intent, but to date no official policy has been issued by New York. In 2013, **North Dakota** passed legislation creating a committee on employment of people with disabilities to support community employment as the first option for individuals with disabilities, but no policy has been established. Via Executive Order, in 2014 **Nevada** established a taskforce on integrated employment.

Policies prioritizing employment: **New Hampshire** and **Vermont** do not have Employment First policies, but both states have policies that prioritize employment. In addition, neither state has facility-based employment services, or allows payment of subminimum wages.

Ongoing grassroots advocacy: **Alabama, Idaho, Iowa, Montana, Nebraska, and South Dakota** have various levels of grassroots advocacy on Employment First, but no official policy. In addition, **Alabama** has proposed Employment First legislation, that has not yet passed.

The level of attention and follow-through after issuance of an Employment First policy varies, with some states undertaking extensive system change efforts (often documented in the resources listed), while for others there has been limited follow-through. To be clear however, the level of resources on this list associated with a state does not necessarily indicate the intensity of a state's focus on employment for people with disabilities. In addition, a few states that have not been strongly linked with Employment First have had consistently stronger employment outcomes as compared to other states.

In the course of developing this document, we have included as many examples of resources as possible. For almost every resource, a web link is included. If a state has an Employment First policy, it is the top item in the list. Also included are related legislation or policies (e.g., legislation to form a state Employment First study group), related reports and documents. The final item(s) for each state are website(s) focused on Employment First efforts within the state which often contain a wide variety of additional documents and resources. The goal in such a comprehensive listing is to show a wide range of approaches to Employment First, including historical documents that led to the implementation of

Employment First policies in a state. Inclusion of specific policies and documents on this list should in no way be viewed as an endorsement, and as previously noted the detail and specificity of policies varies significantly.

The emergence of Employment First as a national movement over the past two decades has been encouraging, and has provided a catalyst for the long-needed increase in workforce participation for individuals with disabilities. At the same time, creation of documents, reports, and policies will not result in increases in workforce participation in and of themselves, without a long-term commitment to actions that make the Employment First vision a reality. Setting a vision and direction is a starting point—but it must be done in conjunction with comprehensive systems change that results in shifting of resources towards integrated employment, a service system that provides consistent and high-quality employment assistance and supports, and measurement and accountability for achieving employment outcomes.

Employment First is also about more than just changing how services and supports for people with disabilities are provided. It is reflective of a fundamental cultural shift by policymakers, public officials, service systems, service providers, employers, and most importantly by individuals with disabilities themselves. This viewpoint recognizes people with disabilities as full participants in the economic mainstream, working side by side with their fellow citizens as part of overall efforts towards respecting and embracing the rights of people with disabilities to be full participants and members of society.

Background and History of this Document

The term “Employment First” appears to have been first used by Tennessee in 2002. However, the first Employment First type policy identified dates back to 1990 in Pennsylvania. With the emergence of Employment First as a more widespread concept, the original version of this resource list was developed in June 2010. At that time, 6 states were identified as having an Employment First policy. All 6 of the policies were focused exclusively on individuals with intellectual and developmental disabilities, and all were policy directives (no legislation). At that time, Kansas had proposed legislation, which was signed into law in 2011. To see the growth of Employment First policies since this list was created in 2010 to the 39 policies that exist today, the majority of which are legislation and cross-disability, is a testament to the power of awareness, advocacy, and example.

As this list has evolved over the past 13 years, the intent has been to include actual policies and related information that can in part serve as examples for other states, and that also illustrate the evolution of Employment First in the state and nation as a whole. Over time, in an effort to keep the list relevant and to a manageable size, it has been necessary to use discretion regarding what items to list. As a result, resources that have become less relevant or outdated, or whose links are no longer active, have been deleted. (However, if you are looking for a document from a previous list that has been deleted, please email David Hoff at david.hoff@umb.edu.) We plan to continue to provide ongoing updates to this resource list as necessary, and welcome feedback regarding the resources listed, and information on new and updated policies and documents.

General Information on Employment First

1. [APSE – Association of People Supporting Employment First](#)
Section of APSE website devoted to Employment First, with array of information and resources including the APSE Employment First Statement, outlining key principles.
2. [Employment First National Report](#)
Report prepared for Florida EmployME 1st documenting Employment First efforts across the U.S.
3. [NGA Report – A Better Bottom Line: Employing People With Disabilities – Blueprint for Governors](#)
2013 report from the National Governors Association, that notes Employment First as an effective strategy, and documents the adoption of it by a number of states.
4. [NASDDDS Report – Employment First: A Review of Successful State Strategies for Improving Employment Outcomes Among People with Disabilities](#)
August 2013 report (national in scope) prepared by National Association of State Directors of Developmental Disabilities Services for the Arizona Developmental Disabilities Planning Council.
5. [USDOL ODEP Employment First Information](#)
US Department of Labor Office of Disability Employment Policy Employment First information.
6. *SABE Employment First Information*
Information on Employment First from SABE – Self-Advocates Becoming Empowered:
 - [A Purpose in Life: Why Employment First Matters to Self-Advocates](#)
 - [APSE Employment First Statement \(version for self-advocates\)](#)

State-Specific Information

For states with an Employment First policy, this is the first document listed. Also included are Employment First related reports from the state, developed by official state workgroups and grassroots initiatives. For states where Employment First activities have not been identified, state efforts emphasizing integrated employment have been noted. If the state has Employment First related websites, those are the final items listed.

Alabama

- [AL Employment First Legislation \(proposed\)](#): The Alabama Employment First Initiative Act, originally introduced in April 2013.
- [AL Website](#): Alabama Employment First website.

Alaska

- [AK Employment First Legislation \(passed\)](#): HB 211, enacted in May 2014; legislation is cross-disability, and specifies that Employment First applies to individuals receiving transition services as well as adults.
- [AK Legislative Packet](#): *HB 211 The Employment First Bill: Supporting Research Packet Overview* developed for legislators as part of effort to pass Employment First legislation.

Arizona

- [AZ Employment First Executive Order](#): November 2017 Executive Order establishing Arizona as an Employment First State (cross-disability).
- [AZ Legislative Resolution](#): 2023 joint resolution from Arizona Legislature expressing support for Employment First.
- [AZ UCEDD Employment First Web Page](#): Information on Arizona coalition working to advance Employment First with links to various resources.
- [AZ DDPC Employment First Information](#): Information from the Arizona Developmental Disabilities Planning Council on Employment First

Arkansas

- [AR Employment First Executive Order](#): October 2010 Governor's Executive Order (10-17) establishing the cross-disability Arkansas Employment First Initiative.
- [AR Employment First Legislation \(proposed\)](#): SB443 introduced in March 2023.
- [Disability Rights Arkansas Report](#): March 2018 report from Disability Rights Arkansas, "Sheltered Workshops in Arkansas: Moving From Segregated Work To Integrated Employment", calling for passage of Employment First legislation.
- [AR Task Force Report](#): December 2011 Final Report of Arkansas Employment First Task Force:
- [AR Employment First Website](#)

California

- [CA Employment First Legislation \(passed\)](#): California's Employment First Policy Legislation, AB 1041, enacted in October 2013, establishing an Employment First policy for individuals served by the state's developmental disability system.
- [CA Employment First Legislation \(summary\)](#): 2014 summary from State Council on Developmental Disabilities on AB 1041, establishing an Employment First policy in California.
- [CA Legislation \(passed\)](#): AB 287, California legislation, enacted in October 2009, establishing Employment First Committee, and calling for the establishment of an Employment First Policy.
- [CA CIE – Blueprint for Change](#): Department of Rehabilitation, Department of Education, Department of Developmental Services jointly issued 2016 document on competitive integrated employment, "Real Work for Real Pay in the Real World" highlighting Employment First Efforts:
- [CA Committee on Employment First Web Page](#)

Colorado

- [CO Employment First Legislation \(passed\)](#): Colorado cross-disability Employment First bill (SB 16-077), enacted in June 2016.
- [CO Employment First Implementation Legislation 2018 \(passed\)](#): Bill passed in May 2018 to implement recommendations of Colorado Employment First Advisory Partnership including staff training/credentialing, data collection, and supporting Discovery as a distinct service.
- [CO Policy on Integrated Employment](#): 1995 Colorado Department of Health Care Policy and Financing – Services for Individuals with Intellectual and Developmental Disabilities Rule 8.609.9 (former Division for Developmental Disabilities rule 16.626) stating that integrated employment is considered the primary service option for adult day habilitation services and supports for individuals with intellectual and developmental disabilities; this was a long-standing policy prior to passage of legislation (policy is on page 63).
- [CO Employment First Advisory Partnership Website](#)
- [Colorado Office of Employment First Website](#)

Connecticut

- [CT Employment First Policy](#): Connecticut Department of Developmental Services Employment First Policy issued in April 2011.
- [CT Policy Regarding Employment as a Priority](#): Companion to April 2011 Employment First policy regarding steps in individual planning process.
- [CT DDS Employment First Overview](#): Overview and resources regarding Connecticut's Employment First efforts.

Delaware

- [DE Employment First Legislation \(passed\)](#): House Bill 319, Delaware's cross-disability legislation on Employment First, enacted in July 2012.
- [DE Employment First Statement](#): 2009 statement from Delaware Division of Developmental Disabilities Services on Employment First stating that employment should be the first service considered.
- [DE Employment First Oversight Commission Website](#)

District of Columbia

- [DC Employment First Policy](#): District of Columbia Department of Disability Services Employment First Policy (cross-disability), issued in December 2014.
- [DC Mayoral Proclamation on Employment First](#): October 2012 Mayoral Proclamation declaring the District of Columbia an Employment First State. See following item for link to proclamation.
- [D.C. P & A Employment Report](#): Report from University Legal Services, protection and advocacy program for District of Columbia, advocating support for Employment First efforts. Includes copy of October 2012 mayoral proclamation in appendix.
- [DC DDS Employment First Summary](#): Department of Disabilities website providing overview of District's Employment First efforts.

Florida

- [FL Employment First Legislation \(passed\)](#): Employment First Act (cross-disability), enacted in January 2016 as part of CS/HB 7003.
- [FL Employment First Executive Order](#): October 2013 Governor's Executive Order (13-284) directing state agencies to identify financing and contract methods that will prioritize employment.
- [FL Interagency Agreement](#): Interagency agreement among 9 Florida agencies to implement Employment First.
- [Employment First Florida Website](#)

Georgia

- [GA Employment First Legislation \(passed\)](#): Georgia's Employment First Act, signed into law May 2018, establishing a cross-disability Employment First policy and Employment First Council to oversee implementation.
- [GA Legislature Report](#): Georgia legislature 2015 report on employment of individuals with IDD recommending creation of an Employment First Advisory Council.
- [GA Legislation Establishing Study Committee](#): 2015 legislation (HR 642) establishing House Committee to examine options for an Employment First Policy.
- [GA Employment First Council Website](#)

Hawaii

- [HI Employment First Legislation \(passed\)](#): Cross-disability Employment First legislation, signed into law July 2022.
- [HI Governor's Proclamation](#): October 2017 Governor's Proclamation, endorsing Hawaii's designation as an Employment First State. Does not specify a specific Employment First policy.
- [HI Developmental Disabilities Division Statement on Employment First](#)

Idaho

- [ID Employment First Summary](#): Document from the Idaho Employment First Coalition, summarizing Idaho's Employment First efforts.
- [ID Employment First Fact Sheet](#): 2019 fact sheet from Idaho Employment First

Illinois

- [IL Employment First Legislation \(passed\)](#): Cross-disability Illinois Employment First Act (HB 2591), enacted in May 2013.
- [IL Employment First Act Fact Sheet](#): Arc alert web page which include link to fact sheet for legislators on Illinois Employment First Act.
- [IL Employment First Blueprint](#): October 2014 report on steps for implementation of Illinois Employment First legislation.
- [IL Employment First Summit 2012 – Report](#)
- [IL Employment First Website](#): Illinois Department of Human Services website with information on state's Employment First efforts.

Indiana

- [IN Employment First Bill \(passed\)](#): Cross-disability Employment First Legislation, SB 390, passed in April 2017.
- [IN APSE Employment First Information](#): Information from Indiana APSE on Employment First.
- [IN Employment First Plan](#): Employment First Plan, issued by the Indiana Commission on Rehabilitation Services in 2020.

Iowa

- [IA DHS Employment Vision](#): Statement on Iowa Department of Human Services website in support of Employment First, with links to resources.
- [IA Olmstead Consumer Taskforce Materials](#): Employment First Fact Sheets for Individuals and Families, and Policymakers.
- [IA Department of Human Rights White Paper: "Employment 1st for Whom?"](#)
- [IA CDD Materials on Employment First](#): University of Iowa Center for Disabilities and Development web page dedicated to Employment First, with a variety of resource materials.

Kansas

- [KS Employment First Legislation \(passed\)](#): Kansas House Bill 2336, enacted in May 2011, that establishes a statewide policy of Employment First for all people with disabilities.
- [KS Department of Education Employment First Policy](#): 2020 Kansas Department of Education Employment First policy specific to transition.
- [KS Employment First Oversight Commission](#): Website of the Kansas Employment First Oversight Commission established by the state's Employment First legislation.

Kentucky

- [KY Employment First Legislation \(passed\)](#): Cross-disability Employment First Legislation signed into law in March 2022.
- [KY Employment First Executive Order 2018](#): May 2018 Governor's Executive Order, establishing a cross-disability Employment First policy, and creation of an Employment First Council to guide implementation.
- [KY Employment First Executive Order 2020](#): June 2020 Governor's Executive Order reinforcing state's commitment to Employment First.

- [KY Work Matters Taskforce Report](#): May 2018 report from state taskforce focused on improving employment for five key populations, including people with disabilities. Includes recommendation for Employment First policy.
- [KY Employment First Website](#)

Louisiana

- [LA Employment First Policy](#): Office of Citizens with Developmental Disabilities July 2011 Employment First policy.
- [LA Governor's Office 2018 Employment First Report](#)
- [LA Department of Health Employment First website](#)

Maine

- [ME Employment First Legislation \(passed\)](#): Maine Employment First Bill (S.P. 471, LD 1352 – Employment First), cross-disability legislation, enacted June 2013.
- [ME Employment Policy](#): November 2010 Maine Department of Health and Human Services Employment Policy, cross-disability policy indicating that all individuals are presumed able and have the opportunity to work:
- [Employment First ME Report](#) – Final report of Employment First Maine, issued in 2016.

Maryland

- [MD Employment First Policy](#): Maryland Department of Disabilities information on Employment First in Maryland that includes 2008 Developmental Disabilities Administration policy on Employment First.
- [MD Developmental Disabilities Administration Employment First Newsletters](#)
- [MD Development Disabilities Administration Employment First information](#)

Massachusetts

- [MA Employment First Policy](#): Massachusetts Department of Developmental Services Employment First Policy (#2010-2), adopted in August 2010.
- [MA Employment Blueprint](#): November 2013 Massachusetts state plan for increasing employment by the state developmental disability system and full implementation of the state's Employment First policy.
- [MA Employment Blueprint Update 2014](#): October 2014 update on Massachusetts Employment Blueprint, and plans to end sheltered work
- [MA Employment Blueprint Update 2023](#): Blueprint for Success 2.0, released in 2023, updating Massachusetts Employment Blueprint, with plans to end subminimum wage.
- [MA APSE Mental Health Employment First Statement](#): January 2017 statement issued by Massachusetts APSE calling for the state Department of Mental Health to implement an Employment First policy:
- [MA Employment First Website](#)

Michigan

- [MI Employment First Executive Order](#): November 2015 cross-disability Governor's Executive Order (2015-15).
- [MI DHHS Employment Works! Policy](#): July 2021 Michigan Department of Health and Human Services update of policy, originally issued in June 2011 Bureau of Community Mental Health Services policy indicating that all individuals with serious mental illness and developmental disabilities will be provided the opportunity to pursue integrated, competitive employment.
- [MI Health and Human Services Employment First Website](#)

Minnesota

- [MN Employment First Legislation](#): MN cross-disability Employment First legislation, signed into law in 2020.
- [MN Employment First Policy](#): MN Department of Human Services Employment First policy (cross-disability), adopted in September 2014.
- [Putting the Promise of Olmstead into Practice - Minnesota's 2013 Olmstead Plan](#): Adoption of the Minnesota Employment First Policy was a result of the state's draft Olmstead plan issued in 2013.
- [Myths and Realities of Olmstead Employment First](#): Publication from the Minnesota State Council on Disability that discusses a number of myths regarding Employment First.
- [MN Department of Human Services Information on Employment First](#)

Mississippi

- [MS Legislation \(passed\)](#): HB 836, enacted in July 2015, implementing an Employment First policy for working age citizens of Mississippi with disabilities.
- [MS Executive Order](#): January 2014 Governor's Executive Order (1335) directing Mississippi state agencies to ensure employment in integrated settings as the first priority option to the extent feasible.

Missouri

- [MO DDD Employment First Policy](#): January 2011 Employment First Policy, issued by the Missouri Department of Mental Health, Division of Developmental Disabilities.
- [MO Legislation \(passed\)](#): Cross-disability legislation, Missouri Employment First Act (SB 45 & 90), passed in May 2023.
- [MO DDD Employment Website](#)
- [Employment First Missouri Website](#)

Montana

- [MT Employment First Initiative Statement](#): Montana Developmental Disabilities Program statement on Employment First.

Nebraska

- [NCDD Plan](#): Nebraska Council on Developmental Disabilities Plan for 2022-2026 includes a goal to establish a Nebraska Employment First Initiative with the goal of becoming an Employment First state by 2026.

Nevada

- [NV Executive Order](#): July 2014 Governor's Executive Order (2014-16) establishing a taskforce on integrated employment.
- [NV Taskforce Report](#): 2015 report from the Governor's Taskforce on Integrated Employment, *Nevada's Strategic Plan on Integrated Employment*.
- [Employment First Legislative Presentation](#): May 2014 presentation on Employment First to NV Legislature Committee on Senior Citizens, Veterans and Adults with Special Needs.

New Hampshire

- [NH Policy](#): New Hampshire does not have an Employment First policy. However, the NH Bureau of Developmental Services has a position statement that emphasizes and prioritize integrated employment.

New Jersey

- [NJ DHS Employment First Policy](#): NJ Department of Human Services cross-disability statement, based on 2012 Governor's announcement.
- [NJ DDD Employment First Information](#): NJ Department of Developmental Disabilities information on Employment First.
- [Advancing New Jersey's Employment First Practices and Policies, A Comprehensive Review and Analysis](#): February 2022 report from the NJ Council on Developmental Disabilities.
- [NJ DD Council Statement](#): September 2019 statement from the NJ Council on Developmental Disabilities, with recommendations for implementation of Employment First policy.

New Mexico

- [NM Employment First Policy](#): New Mexico Developmental Disabilities Supports Division Employment First Policy adopted in November, 2016

New York

- [NY Executive Order](#): September 2024 Governor's Executive Order (No. 40) implementing Employment First
- [NY Employment First Commission Report](#): March 2015 report of the New York Employment First Commission.

North Carolina

- [NC Employment First Executive Order](#): March 2019 Executive Order, establishing North Carolina as an Employment First State (cross-disability).
- [NC APSE Employment First Information](#): Employment First resources and papers from North Carolina APSE.

North Dakota

- [ND Legislation \(passed\)](#): Legislation enacted in April 2013, establishing a committee for furthering the goal of employment as the first option for people with disabilities:
- [ND Summit Report](#): October 2011 report from the North Dakota Employment First Summit.

Ohio

- *OH Employment First Legislation*: [Sec. 5123.022 of FY 2014 Budget Bill \(H.B. 59\)](#), enacted in July 2013, that includes language making Ohio's Employment First policy for individuals with developmental disabilities state law;; see [bill analysis](#) for summary of Employment First provisions.
- [OH Executive Order](#): 2012 Executive Order establishing Ohio as an Employment First state, specific to individuals with developmental disabilities.
- [OH Employment First Website](#)

Oklahoma

- [OK Legislation](#): Oklahoma Employment First Bill (cross-disability), enacted in 2015.
- [OK DDS Employment Policy](#): Oklahoma Developmental Disabilities Services July 2005 employment policy, stating that the optimal goal of waiver services is full-time employment in the community.

Oregon

- [OR Legislation](#): Senate Bill 22, Employment First legislation (IDD only), effective April 2013.
- [OR DDS 2022 Policy](#): Oregon Office of Developmental Disabilities July 2022 updated policy on employment services for individuals with intellectual and developmental disabilities.
- [OR DDS 2008 Policy](#): Oregon Office of Developmental Disability Services October 2008 policy on employment for working-age individuals.
- *OR Executive Orders*: Oregon Governor's Executive Orders on increasing employment of individuals with IDD:
 - [April 2013 order \(13-04\)](#)
 - [Feb. 2015 order \(15-01\)](#)
- [OR DHS Website](#): Section of Oregon Department of Human Services website dedicated to Employment First

Pennsylvania

- [PA Employment First Legislation](#): House Bill 1641, signed into law in June 2018, codifying the state's Employment First policy (cross-disability), and establishing the Governor's Cabinet for People with Disabilities, and Employment First Oversight Commission.
- [PA Employment First Executive Order](#): March 2016 Governor's Executive Order (2016-03) establishing a cross-disability Employment First policy.
- [PA Employment First Policy Recommendations \(September 2016\)](#)
- [PA Employment Policy – General](#): December 2005 policy document from Pennsylvania Office of Developmental Programs on community employment as a priority.

Rhode Island

- [RI BHDDH Employment First Policy](#): February 2013 Employment First policy for individuals with developmental disabilities issued by the Rhode Island Department of Behavioral Healthcare, Developmental Disabilities and Hospitals.
- [RI DESE Employment First Policy](#): September 2014 Employment First policy from the Rhode Island Department of Elementary and Secondary Education on Employment First for transitioning students with intellectual and developmental disabilities.
- [USDOJ Consent Decree Mandating Employment First](#): 2014 consent decree with US Department of Justice, mandating an Employment First Policy for the Rhode Island Department of Education.
- [RI 1115 Waiver Taskforce Report](#): September 2009 paper which contains initial proposal for Rhode Island to be an Employment First state.

South Carolina

- [SC Legislation \(passed\)](#): 2022 legislation, *Employment First Initiative Act*, encouraging state agencies to adopt an Employment First Policy, and establishing an Employment First Oversight Commission.
- [SC DDS Employment First Policy](#): South Carolina Department of Disabilities and Special Needs Employment First Policy (700-07-DD), specific to IDD, June 2021 revision to original 2015 policy.
- [SC Employment First Study Committee Legislation](#): Legislation signed into law in May 2018, establishing an Employment First Study Committee to determine the need for Employment First Legislation in South Carolina.
- [SC Employment First Study Committee Report](#): May 2019 report with series of recommendations for Employment First in South Carolina, including passage of Employment First legislation.
- [SC Employment First Fact Sheet](#): Fact sheet from [Hire Me SC](#), advocating for Employment First legislation.
- [SC Employment First Pledge](#): Pledge from SC APSE, asking for commitment by stakeholders to commit to Employment First.

South Dakota

- [SD Governor's Statement](#): July 2013 statement from Governor of South Dakota, declaring goal of making South Dakota an Employment First state.
- [SD Taskforce Report](#): January 2014 *South Dakota Employment Works Taskforce Report*.

Tennessee

- [TNDIDD Employment First Statement](#): 2003 statement from the Tennessee Department of Development and Intellectual Disabilities, in support of Tennessee's Employment First Initiative, based on 2002 policy statement from The Arc of Tennessee, which was the original use of the term "Employment First".
- [TN Employment First Executive Order](#): June 2013 Governor's Executive Order (No. 28) establishing the Tennessee Employment First Initiative (cross-disability):

- [TN Employment First Overview](#): 2007 publication from the Institute for Community Inclusion providing an overview and history of Tennessee's Employment First initiative. TN was the first state to use the term "Employment First".
- [TN Employment First Taskforce Website](#): Includes copies of annual reports.
- [TN Employment First Website](#)

Texas

- [TX Legislation \(passed\)](#): June 2013 Texas Senate Bill 1226 (cross-disability).
- [TWC Employment First Policy](#): Texas Workforce Commission (which includes public vocational rehabilitation) Employment First Policy.
- [TX Health and Human Services Employment First Website](#)

Utah

- [UT 2011 Legislation \(passed\)](#): HB 240, enacted in March 2011, requiring that employment be the first priority for individuals with disabilities receiving services from the Department of Workforce Services, the Utah State Office of Rehabilitation, and the Division of Services for People with Disabilities:
- [UT 2012 Legislation \(passed\)](#): HB 240, enacted in March 2012, as a companion to 2011 legislation adding the Division of Substance Abuse and Mental Health.
- [UT Employment First Strategic Plan](#): 2014 strategic plan.
- [UT Department of Human Services Employment First Website](#)

Vermont

Vermont does not have an Employment First policy. However, Vermont's Developmental Disability Services in the state Department of Disability and Aging Services has a number of policies in support of an Employment First paradigm, with "a philosophy that presumes employability for all given the right supports are provided to the individual":

- [VT Employment Philosophy](#): A public stated philosophy that presumes employability for all:
- [VT Funding Policy](#): For those receiving employment supports, use of funds for sheltered workshops or enclaves is not allowed (see p. 69 of *System of Care Plan*).

Virginia

- [VA DBHDS Employment First Policy](#): December 2012 Virginia Department of Behavioral Health and Developmental Services policy on Employment First (cross-disability: specifically applies to individuals with developmental disabilities, mental health, substance abuse):
- [VA Legislation \(passed\)](#): Joint Virginia and Senate House Resolution, passed in 2012, encouraging the Secretary of Health and Human Resources and the Superintendent of Public Instruction to adopt and implement Employment First practices.
- [USDOJ Settlement Agreement Mandating Employment First Policy](#): US Department of Justice 2012 settlement with the state of Virginia mandating implementation of an Employment First policy:
- [VA DBHDS Strategic Plan for Employment First](#): October 2012 Employment First strategic plan issued by Virginia Department of Behavioral Health and Developmental Services:

Washington State

- [WA State Employment First Legislation](#): Legislation enacted in 2012 establishing parameters around employment as first priority for individuals with developmental disabilities, with option of alternative community access program:
- [WA State Employment First Policy](#): Washington Division of Developmental Disabilities Working Age Adult Policy; initially adopted in 2004, most recently updated 2023.
- [Publication on Washington Policy](#): 2007 publication from Institute for Community Inclusion providing an overview of Washington's Working-Age Adult Policy:

West Virginia

- [WV Legislation \(passed\)](#): HB 2290, enacted in April 2021, establishing a task force to implement a cross-disability Employment First Policy.
- [WVDDC Employment First Fact Sheet](#): 2021 fact sheet on Employment First from the West Virginia Developmental Disabilities Council
- [WV Olmstead Council Legislative Priorities](#): West Virginia Olmstead Legislative Priorities for 2015 include Employment First:

Wisconsin

- [WI Legislation \(passed\)](#): Legislation (2017 Wisconsin Act 1978) enacted in March 2018, establishing a cross-disability Employment First Policy for Wisconsin and specific requirements for state agencies in terms of implementation.
- [Sign-On Agreement for WI Employment First Coalition](#): Survival Coalition of Wisconsin Disability Organizations agreement for signing on in support of Employment First.
- [WI Employment First Website](#)

Wyoming

- [WY Legislation \(passed\)](#): Enrolled Act No. 54, Employment First Legislation, (cross-disability) enacted July 2014.
- [WY Employment First Website](#): State of Wyoming Employment First initiative website.

THIS PUBLICATION WAS DEVELOPED BY:

David Hoff • Institute for Community Inclusion • UMass Boston
617-287-4308 • david.hoff@umb.edu



The State Employment Leadership Network (SELN) is a cross-state cooperative venture of state MR/DD agencies that are committed to improving employment outcomes for adolescents and adults with developmental disabilities. Working documents contain information collected in response to state requests, and federal, state and local initiatives of interest to the SELN membership. They are intended to share work in progress but may not be a comprehensive analysis or compilation. Working documents are updated over time as information changes.

The SELN is a joint program of the Institute for Community Inclusion at UMass Boston and the National Association of State Directors of Developmental Disabilities Services.

FOR MORE INFORMATION:

Suzanne Freeze
Project Manager
Institute for Community Inclusion
University of Massachusetts Boston
100 Morrissey Boulevard
Boston, MA. 02125
suzanne.freeze@umb.edu
724-256-9876

Wesley Anderson
Project Manager
National Association of State Directors of Developmental
Disabilities Services (NASDDDS)
301 North Fairfax Street, Suite 101
Alexandria, VA 22134
wanderson@nasddds.org
703-683-4202